3072

Executive Order

ALASKA.

Regulations for sale of lots within the Talkeetna Townsite, Alaska.

METHOD OF SALE

It is hereby ordered that the sale and disposition of lots in the Talkeetna Townsite, Alaska, pursuant to the Act of Congress approved March Twelfth, Nineteen Hundred and Fourteen (Thirty eight Statutes at Large, page three hundred five) shall be governed by Executive Order number twenty four hundred and eighteen, dated July Eleventh, Nineteen Hundred and Sixteen, providing for the sale of the Federal and Cliff additions to the Townsite of Seward, Alaska, except as hereinafter provided.

PREFERENCE RIGHT TO OCCUPANTS AND OWNERS OF IMPROVEMENTS

A preference right to purchase, at the appraised price may be accorded to any person who by himself or his predecessors in interest prior to the date of the survey of said Talkeetna Townsite on September Sixteenth, Nineteen Hundred and Eighteen, was an actual resident on any lot or lots within what is now included in the surveyed Talkeetna Townsite, or who placed valuable and permanent improvements thereon and who has continued such residence, or who is the owner of such improvements on the date of sale: PROVIDED, That such preference right of purchase must be exercised by the claimant or any lawfully constituted agent in his behalf, by filing application to purchase such lot or lots, with the superintendent of sale, at his office in Anchorage, Alaska, at least ten days prior to the published notice of sale, showing that prior to September Sixteenth, Nineteen Hundred and Eighteen he was either an actual resident upon the lot applied for or had substantial and permanent improvements thereon, and that such residence or ownership has been maintained to the date of filing such application. Upon the filing of such application the superintendent of sale will inquire into the facts as stated in the application to purchase and if he finds the statements as to residence and ownership of improvements to be true he shall receive the purchase price for such lot or lots and will issue his memorandum receipt therefor as provided by Executive Order number twenty two hundred and fourteen of June Nineteenth, Nineteen Hundred and Fifteen.

FORFEITURE OF PREFERENCE RIGHT.

All preference rights of entry of actual residents or owners of improved lots which have not been applied for, as herein provided, on the date fixed for the public sale, will be forfeited, unless a contest be pending thereon as hereinafter provided, and such lot or lots will be offered at public outcry in their regular order with other unimproved and unclaimed lots.

CONFLICTS—HEARINGS.

If two or more persons shall claim the same lot or lots, the superintendent of sale shall forward the application or applications, without action to the register and receiver of the United States Land Office at Juneau, Alaska, who shall order hearing thereon and the rights of the applicants shall be determined as in ordinary contest cases, under the Rules of Practice. Hearings will also be allowed where a sufficient contest or protest affidavit is filed against an application on or before the date fixed for the public sale, but no purchase money will be collected from the applicants until the final determination of the case, whereupon the successful applicant will be required to pay the purchase price within thirty days from notice thereof.

Executive Order No. 2214, issued June 19, 1915, and all other orders conflicting herewith are hereby modified to conform with this order, in so far as the sale and disposition of the lots in said townsite are concerned.

WOODROW WILSON

THE WHITE HOUSE,
8 April, 1919.

[No. 3072.]

Application for preference right to purchase lot in Talkeetna Townsite—Alaska.

Department of the Interior,
Land Office at Juneau, Alaska,

.....

I ..... of .....

do hereby apply to purchase under the Act approved March Twelfth, Nineteen Hundred and Fourteen (38 Statute at Large 305) Lot No. ..... in Block No. ..... in the townsite of Talkeetna, Alaska, as delineated and designated on the plat of survey of said townsite, containing ..... at the appraised price of .....

basing said application on actual residence and ownership of improvements as follows: .....

.....

.....

Applicant.

I hereby certify that the foregoing application was signed and acknowledged before me this ..... day of ..... 19....

at .....

.....

Official designation of Officer.

I hereby certify that I have inquired into the facts stated in the foregoing application as to occupancy and improvements and find them on the best information obtainable to be true and that the appraised price thereof is .....

.....

Superintendent of Sale.